

September 22, 2010



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 9023
(SIXTH REVISION)

EXPIRATION DATE: February 28, 2014

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Eurotainer SAS
Puteaux Cedex France
(U.S. Agent: Eurotainer U.S. Inc., Humble, TX)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain non-DOT specification IMO Type 5 portable tanks for the shipment of the hazardous materials identified in paragraph 6 herein. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.315(a) in that non-DOT specification portable tanks are not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Eurotainer SAS, submitted by their U.S. Agent dated March 2, 2010, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
1, 1 Difluoroethane, or refrigerant gas R 152A	2.1	UN 1030	N/A
1,1,1-Trifluoroethane or Refrigerant gas R 143a	2.1	UN 2035	N/A
1-Chloro-1,1-difluoroethanes or Refrigerant gas R 142b	2.1	UN 2517	N/A
Chlorodifluoromethane or Refrigerant gas R 22	2.2	UN 1018	N/A
1-Chloro-1,2,2,2-tetrafluoroethane or Refrigerant gas R 124	2.2	UN 1021	N/A
Dichlorodifluoromethane, or Refrigerant gas R 12	2.2	UN 1028	N/A
Hexafluoropropylene, compressed or refrigerant gas R 1216	2.2	UN 1858	N/A
Chlorodifluoromethane and chloropentafluoroethane mixture, or Refrigerant gas R 502	2.2	UN 1973	N/A
Dichlorodifluoromethane and difluoroethane azeotropic mixture or Refrigerant gas R 500	2.2	UN 2602	N/A
1,1,1,2-Tetrafluoroethane or Refrigerant gas R 134a	2.2	UN 3159	N/A
Liquified gas, n.o.s. (Chlorodifluoromethane and Chlorotetrafluoroethane) Note 1	2.2	UN 3163	N/A

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Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Liquified gas, n.o.s. (Pentafluoroethane and Tetrafluoroethane) Note 2	2.2	UN 3163	N/A

Notes:

1. Suva 39 or R-401a, Suva 66 or R-401b, and Suva 52 or R-401c are all blends of Chlorodifluoromethane, Chlorotetrafluoroethane and R-152a. The differences are in percentage of each component. All are shipped under the same proper shipping name
2. Pentafluoroethane and Tetrafluoroethane: aka Suva HP-62, R-404a

7. SAFETY CONTROL MEASURES:

a. Packaging prescribed is a non-DOT specification portable tank, mounted in an ISO frame, designed and constructed in accordance with ANF - Industrie drawing 46050 191 001 Rev. E, other drawings, technical specifications and calculations on file with the OHMSPA, and in compliance with the following:

- (1) Code--Complies with DOT Specification 51 except that tanks are not ASME Code stamped.
- (2) Insulation -- None
- (3) Water Capacity (U.S. Gallons) -- 4,439
- (4) Material -- French steel standard NFA 36205, designation A 52FP (Carbon steel); Yield strength - 52,200 psi; Tensile strength - 74,820 psi.
(outside dia.) X (length) X (thickness)
- (5) Tank Size (inches) 78.74 223.27 0.6102 (min.)
- Head Thickness -- 0.5630 (min.)
- Weld Joint Efficiency -- 1.0
- Corrosion Allowance -- 0.0
- Number of Baffles -- 2

(6) Design Pressure (PSIG) -- 287
Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code.

(7) Test Pressure, Minimum (PSIG) - 430

(8) Openings -- Two(2), 7.5 inch diameter openings for pressure relief devices on the top; one(1), 23.7 inch diameter opening for the manhole on the head; one(1), 8.3 inch diameter opening for the liquid phase valve and one(1), 7.5 inch opening for the vapor phase valve on the bottom.

NOTE: Each bottom outlet valve shall be provided with a shear section that meets the requirements of § 178.337-12.

(9) Tank surface area (square feet) -- 441.

(10) Pressure Relief Devices -- Two(2) 2.0 inch diameter spring loaded safety relief valves set to discharge at a pressure between 287 psig and 316 psig and having a minimum total relief device capacity of 1,695,120 SCFH.

Each pressure relief device must be marked with a start-to-discharge pressure in psig and a rated relief device capacity in SCFH.

(11) G-Loadings: Vertical down 2; Vertical up 2; Longitudinal 2; and Transverse 2.

(12) Maximum Gross Weight (pounds) -- 52,910.

(13) Maximum Commodity Weight (pounds) -- 37,258

(14) Tare Weight (pounds) -- 15,652

(15) Design Specific Gravity -- 1.01

b. TESTING - Each tank must be (i) visually inspected prior to each trip to insure that it has not been damaged on the previous trip; and (ii) retested and reinspected once every five years in accordance with § 180.605 as prescribed for DOT Specification 51 portable tanks.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or change are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- c. Hydrostatic test certificates for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any representative of the DOT upon request.
- d. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-SP 9023".
- e. No product may be shipped that has venting requirements exceeding 1,695,120 SCFH. The venting capacity required for each product must be determined by the flow formulas contained in the Compressed Gas Association (CGA) pamphlet S-1.2.
- f. A test report documenting a satisfactorily ISO prototype test for this tank design must be on file with the OHMSPA prior to the first shipment.
- g. The tank must be filled in accordance with the provisions of § 173.315.
- h. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.
- i. "DOT-SP 9023" must be stamped on the metal manufacturer's data plate on the line which reads "U.S. DOT Specification No.".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous

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materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: nw